

lodging, and give directions to tradesmen to supply the son and the wife and children with all that was necessary for maintenance, and if so the assignees were not entitled to anything" (*a*). But if there be a power not arbitrary but imperative to apply for the benefit of the bankrupt and another, and the trustees refuse to exercise the power, so that a simple trust arises, the creditors will take a moiety (*b*), and if by the death of the other person the bankrupt becomes the only object of the power, the creditors will take the whole (*c*).

14. **Limitation over on alienation.**—But though a person cannot put a restraint upon alienation, or exclude the rights of creditors, he may settle property upon A. *until* alienation, bankruptcy, or insolvency, with a limitation over to B. on the happening of either of those events; or he may give real or personal estate to A. for *life* (*d*), with a *proviso* that on alienation, bankruptcy, or insolvency (*e*), it shall shift over to B., and where property was by an instrument dated in 1862, limited to A. for life "or until he should be outlawed or declared bankrupt or become an insolvent debtor within the meaning of some Act of Parliament for the relief of insolvent debtors," his interest was held to cease on the presentation of a petition for liquidation under the Bankruptcy Act, 1869, by a firm of which he was a member, followed by acceptance by the creditors of a composition.¹ And if the trust be for A. for life, remainder to B. for life, or until bank-

(*a*) *Godden v. Crowhurst*, 10 Sim. 642; and see *Kearsley v. Woodcock*, 3 Hare, 185; *Wallace v. Anderson*, 16 Beav. 533; *In re Landon's Trusts*, 40 L. J. N. S. Ch. 370.

(*b*) *Ribbon v. Norton*, 2 Beav. 63.

(*c*) *Wallace v. Anderson*, 16 Beav. 533.

(*d*) *Shee v. Hale*, 13 Ves. 404; *Cooper v. Wyatt*, 5 Mad. 482; *Yarnold v. Moorhouse*, 1 R. & M. 364; *Lockyer v. Savage*, 2 Stra. 947; *Stephens v. James*, 4 Sim. 499; *Ex parte Hinton*, 14 Ves. 598; *Lewes v. Lewes*, 6 Sim. 304; *Ex parte Oxley*, 1 B. &

B. 257; *Stanton v. Hall*, 2 R. & M. 175; *Oldham v. Oldham*, 3 L. R. Eq. 404; *Montefiore v. Behrens*, 35 Beav. 95; *Hammonds v. Barrett*, 21 L. T. N. S. 321; 17 W. R. 1078; *Billson v. Crofts*, 15 L. R. Eq. 314; *Re Aylwin's Trusts*, 16 L. R. Eq. 585; [*Hatton v. May*, 3 Ch. D. 148; *Re Bedson's Trusts*, 25 Ch. D. 458; affirmed 28 Ch. D. 523. *Joel v. Mills*, 3 K. & J. 458;] and see *Rochford v. Hackman*, 9 Hare, 475; *Sharp v. Cosserat*, 20 Beav. 470.

(*e*) As to what is insolvency, see *Re Muggeridge's Trust*, Johns. 625.

¹ *Nixon v. Verry*, 29 Ch. D. 196.